



CONSTITUTION

Proposed by the NEC for NDC adoption after legal compliance
approval by the Office of the Registrar of the Political Parties

Dated 15th APRIL, 2024

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**JUSTICE & FREEDOM
PARTY OF KENYA
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CHAPTER 1 – PREAMBLE

We, members of JUSTICE AND FREEDOM PARTY OF KENYA (JFP);

ACKNOWLEDGING the supremacy of the Almighty God Yahweh our creator,

GUIDED by His values, morals and virtues,

DETERMINED to restore full dignity to every Kenyan and add value to the lives of every Kenyan giving them the respect they deserve,

AWARE that the foundation of a nation cannot be built on political strife and inequality emanating from negative ethnicity,

PROUD of our ethnic, cultural and religious diversity and determined to live in peace and unity as one indivisible sovereign nation,

HONORING those who heroically struggled to bring freedom and justice to our land,

RECOGNIZING the aspirations of all Kenyans for a government based on the essential values of freedom, democracy, social justice and the rule of law,

COMMITTED to nurturing and protecting the well-being of the individual, the family and the community of our nation,

RESPECTFUL to our elders, women and children,

EXERCISING our sovereign and inalienable right to determine the form of governance of our country and having participated fully in national election.

DO ADOPT enacts and gives this Constitution to ourselves and to our future generations.

GOD BLESS KENYA.

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CHAPTER 2 – PRELIMINARY

2.1 This Constitution shall be cited as the JUSTICE AND FREEDOM PARTY OF KENYA (JFP) Constitution and shall come into operation on such day as it is approved by the National Delegates Convention.

2.2 In this Constitution, unless the context otherwise requires:

“Party” means the JUSTICE AND FREEDOM PARTY OF KENYA (JFP).

“Registrar” means the registrar of political parties designated as such under section 3 of the Political Parties Act, 2011.

“JFP” means JUSTICE AND FREEDOM PARTY OF KENYA.

“Political Party” means any association or organization of persons which has for its objects or purposes proposing or supporting of candidates for National or local authority elections.

“Office bearer” means any person who is elected by the members of the party to hold a particular office.

“Corporate” means a registered political party which is a member of the Justice and Freedom Party or vice versa.

“Group Member” means a registered organization e.g. Trade Unions, Professional Associations, Students’ Unions, etc.

CHAPTER 3 – IDENTITY, VISION AND MISSION

Article 3.1: Establishment

There is hereby established a Political Party known as the JUSTICE AND FREEDOM PARTY OF KENYA (JFP) (hereinafter referred to as “the Party” or “JFP” in this Constitution). This Constitution shall be the supreme organ of the Party.

Article 3.2: The Emblem

The party symbol is a stretched out hand holding freedom torch as is illustrated more in schedule 1 hereto.

Article 3.3: Party Flag

The party’s flag is the logo (stretched out hand holding freedom torch) embossed at the centre with the words JFP a streak of purple and gold and the words UKWELI NA HAKI fully borne out at the bottom of the logo as is more described in schedule II hereto.

Article 3.4: Party Slogan

Party slogan is “UKWELI NA HAKI”.

Article 3.5: Party Salute

The party salute is stretched out fist.

Article 3.6 Party vision

Restoration of justice in the land to establish a prosperous, industrialized and modern nation, in which all citizens enjoy equal social, economic and democratic rights, and live in unity.

Article 3.7: JFP Mission Statement

To be a conduit to equip, nurture and protect social and democratic society for edifying of the citizen to unity till we be complete and effective globally.

Article 3.8: Party Headquarters

The site of the National headquarters of Justice and Freedom Party will be determined by the National Executive Committee.

CHAPTER 4 – AIMS/OBJECTIVES AND VALUES

The JUSTICE AND FREEDOM PARTY OF KENYA's seeks to provide a suitable political party to serve as a platform for like-minded agents of justice and this principle obedience to enable them to exercise their political right and moral obligation of voting in a government of their choice. Objects are as follows:

- Service (Aleph) - Seeking to love and serve all peoples with integrity securing freedom and fairness in every opportunity to find pure justice, peace and joy.
- Society (Beth) – To restore order in the family unit and ensure ample opportunity for husbands to nurture relationships of purity with their wives and support parents in rightly raising the Nation's children in the way they should.
- Sustenance (Gimel) - Securing supply of food to feed the hungry and establish a fair food distribution chain, nationwide. Sustainable agricultural policies not dependent on weather patterns.
- Restoration (Daleth) – Open doors of opportunity for the less fortunate and establish a socially oriented national support system catering to orphans, widows and the disadvantaged of society. Also equitable distribution of wealth, as all belongs to the Almighty Power.
- Sanctity of life (Hey) – To proclaim and demonstrate the goodness of the Almighty Power, teaching all to fear only Him, always devoting to meeting needs, doing justly and walking humbly before him.
- Togetherness (Waw) - Restore unity among all peoples of this land and our neighbours where necessary through a balanced communication infrastructure and fair wealth distribution.
- Innovation (Zayin) - To encourage innovative indigenous technologies in all sectors including trade, transport, communication and energy.
- Sovereignty (Chet) - Efficiently protect our borders from intrusion and interference.
- Intelligence (Teth) - Have a truly supportive and inclusive national policing system (Utumishi Kwa Wote).
- Freedom (Yod) - Ensure that our people are free from all fears and lies both from the evil within our borders and outside our borders.
- Labour (Khaf) - Restore a reliable labour structure and protect all workers from oppressive manipulation and inhumane pay packages.
- Education (Lamed) – We will foster the emergence of a relevant education

system of knowledge dissemination at all levels through literacy and innumeracy as a basic right for all Kenyans. To endeavour to perpetuate a reconditioning of the limited African power to be great and maintain an informed society within truth based principles and historical contexts of who we are and how we became what we are by propagating a more excellent way to live.

- Water (Mem) – Ensure pure, clean and adequate supply of water for all at minimal cost. To establish a national restoration and management system of all environmental resources and ecosystems.
- Land (Nun) – Every citizen by birth has a right to land and the opportunity to a livelihood from it. To help all citizens acquire this right. All land belongs to the Almighty Power and we are just but stewards.
- Borders (Samek) - To support regional cooperation and support our neighbours pursuing the cause of justice for her people but unwaveringly defend the same when the need arises.
- Mass Media (Ayin) - Clean up the media of all immoral material and encourage the propagation of national purity and 'development'.
- Advocacy (Pe) - Speak for the oppressed, physically challenged and the poor, justly condemning and promptly pronounce judgments upon any rights infringement of the less fortunate anywhere in the world.
- Legal Law (Tsadde) – Establish a true system of legal justice based on integrity of equity and fairness that will render fast, accurate and non-deferred, non-biased judgments. No law or person can be above the basic principles given by the Almighty power keeper of oaths' instructions.
- Morality (Qoph) - Eradicate social immorality at all levels including prostitution, witchcraft, drug abuse, lewdness, drunkenness, bitter malice, theft, degenerated reverence.
- Leadership (Resh) - Share the vision and declare our focus to raise-up a sanctified nation to The Almighty One, in order to stop the cause of all plagues and pestilence that have befallen us in the past.
- Cleansing (Shin) - Sever all ties that bind us in reliance on aid from the developed world and restore all local natural resources to the Nation's indigenous people. To be lenders and not borrowers.
- Sincerity (Taw) – In our sincerity towards obeying instructions for life, to strive to recognize, expose and draw towards repentance of any wickedness in the land and give leadership on how we should stay the judgments of the Almighty.

4.31 Values

The JUSTICE AND FREEDOM PARTY OF KENYA's core values include, but are not limited, to:

- (i) Supremacy of the almighty God Yahweh of all creation.
- (ii) Sovereignty of Party members as citizens of Kenya;
- (iii) Social and Economic justice;
- (iv) Respect for constitutionalism and the rule of law;
- (v) Respect for individual and people's rights and freedoms;
- (vi) Democratic governance and people's participation;
- (vii) Freedom with responsibility;
- (viii) Empowerment of the marginalized groups or sections of society;
- (ix) Sustainable use of the environment;
- (x) Positive and mutually beneficial international relations;
- (xi) Avail equal opportunity irrespective of gender, race, tribe, religion, physical abilities, etc.

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CHAPTER 5 – MEMBERSHIP, RIGHTS AND DUTIES

Article: 5.1 Membership

5.0.1 Membership of the JUSTICE AND FREEDOM PARTY OF KENYA shall be open, upon application to the Branch Executive Committee, to all Kenyan citizens in possession of a valid National Identification card or Passport, irrespective of gender, race, colour or creed and who accepts principles, objects, policies, programs, directives and discipline of the Party and are prepared to profess and abide by this Constitution and rules made there-provided that such person is not a member of another Political Party within the meaning of the Political Parties Act, 2011.

5.0.2 Any person who, upon application to the National Executive Committee, has manifested a clear identification with the Justice and Freedom Party and its principles, objects, policies, programs, directives and discipline and is resident in Kenya.

5.0.3 Any person who, upon application to the National Executive Committee, is a citizen of the Republic of Kenya though not ordinarily resident in Kenya and has manifested a clear identification with the Justice and Freedom Party, its principles, objects, policies, programs, directives and discipline. Such a member temporarily residing abroad for a continuous period of more than twelve months may retain his/her membership but shall notify Party Headquarters of his/her forwarding address.

5.0.4 No person otherwise disqualified under the Political Parties Act, 2011 shall be eligible for membership as a founding member within the meaning of that Act.

5.0.5 All members shall, before a Certificate of Membership is conferred to him/her, sign and subscribe to the Party's Code of Conduct and a Pledge of Commitment.

5.0.6 All members shall, before a Certificate of Membership is conferred
him/her, pay prescribed fees for membership.

Article 5.1: Categories of Membership

5.1.1 Subject to the approval of the National Delegates Convention, the

National Executive Committee shall have power to create or abolish any category of membership for the advancement of the Party's interest as the circumstances may permit.

The Party shall, for the time being, have the following categories of membership:

- (i) Ordinary membership;
- (ii) Life membership;
- (iii) Group membership; and
- (iv) Corporate membership.

5.1.2 Provided that group membership shall be open, upon application to the National Executive Committee, to organizations including Trade Unions, Professional Associations, Co-operative Societies, Students' Unions or any other organization which subscribes to this Constitution.

5.1.3 A member may convert his/her membership from one category of membership to the other by paying the prescribed fees as may be recommended by the National Executive Committee.

Article 5.2: Rights of Party Member

5.2.1 A member of the JUSTICE AND FREEDOM PARTY OF KENYA shall have the right to:

- a) Participate in Party activities;
- b) Take a full and active part in the discussion, formulation and implementation of Party policies;
- c) Receive copies of Party documents including the Constitution, Members' Guide, Election and Nomination Rules, Party manifesto and available information about their local branch upon request;
- d) Receive and impart information on all aspects of Party policies and activities save where such right has been lawfully restricted;
- e) Offer constructive criticism of any member, official, policy, programme or activity within the Party and its structures;
- f) Submit proposals or statements to the Branch, Region, or National Executive Committee provided that such proposals are submitted through appropriate Party structures;
- g) Take part in elections through voting and be eligible for Party and National Elections at all levels upon nomination.

Article 5.3: Duties of Party Member

5.3.1 A member of the JUSTICE AND FREEDOM PARTY OF KENYA shall:

- a) Take all necessary steps to understand and carry out the objects, policies and programs of JFP;
- b) Explain the objects, policies and programs of the Party to others;
- c) Combat propaganda detrimental to the interests of the Party and defend the objects, policies and programs of the Party;
- d) Popularize the Party;
- e) Observe discipline, the Party Code of Conduct and obey lawful decisions made by regular Party organs;
- f) Refrain from publishing and or distributing through the media any information deemed confidential, or any other view purporting the same to be the view of the Party without proper authority or mandate of a regular organ of the Party;
- g) Ensure that he or she is registered as a voter within any of the constituencies in the country and take all steps to vote during Party and national elections;
- h) If a member holds an elective office in any sphere of governance at National, Branch or local level, be a member of the appropriate Party caucus and function within its articles, abiding by all lawful decisions under general provisions of this Constitution and structures of the Party;
- i) Be liable to pay such fees as shall be prescribed by the Party;
- j) Support the Party financially and materially when called upon to do so for a good cause.

Article 5.4: Termination of Membership

5.4.1 A member of the Party shall cease to be one:

- a) Upon written resignation to the relevant Branch. Membership shall terminate with effect from the date of the receipt thereof, provided that the termination shall not absolve the member from performing and outstanding obligations owed to the Party or other members qua

members;

b) By a resolution passed by the National Executive Council and ratified by the National Governing Council;

c) By accepting an office, subscribing to or promoting activities of a Political Party or Organization whose aims and objectives are in competition with or in conflict with those of JFP;

d) Upon death;

e) By an operation of any prescribed law.

A person who has terminated his or her membership:

a) shall not be entitled to a refund of fees or subscriptions made by him or her to the Party prior to termination, and all rights, privileges and responsibilities or facilities granted to or enjoyed by him or her by virtue of his membership shall automatically terminate with effect from the date of receipt of written resignation from the Party;

b) Shall return all party property within his custody, possession or control, failure to which the Party shall have a right to lay claims against such person for any money due or owing to the Party or for any damage or loss occasioned to Party property which was in his custody, possession or control prior to termination of membership;

c) Shall have his/her name struck off from the register of Party members.

Article 5.5

5.5 The register of members shall contain the following details as pertains to each member: full name; national identity card number or passport number; date of birth; polling station; county assembly ward; constituency; county; gender; any disability.

5.6 The register of members shall be updated continuously so as to reflect accurately the Party's register of members at any given point in time.

CHAPTER 6 – NATIONAL OFFICIALS

Article 6.1: National Officials

The National Officials shall be;

1. Party Leader
2. Deputy Party leader
3. National Chairperson
4. Deputy Chairperson
5. Secretary General
6. Deputy Secretary General
7. National Treasurer
8. Deputy Treasurer - Finance
9. National Organizing Secretary
10. Deputy Organizing Secretary
11. Secretary for Public Policy and Economic Affairs
12. Secretary for Legal and Constitutional Affairs
13. Secretary for Publicity and Information
14. Secretary for International Affairs
15. Secretary for Women Affairs (Justice and Freedom Party Women Leader)
16. Secretary for Youth Affairs (Justice and Freedom Party Youth Leader)
17. Secretary for Special Interest Groups
18. Secretary for Environment
19. Secretary for Parliamentary Affairs (Whip)

20. Secretary for Devolved Government
21. Secretary for Science and Technology
22. Secretary for Labour and Human Resource Development
23. Secretary for Special Programs, Security and Social Welfare
24. Secretary for Humanitarian and Disaster Management Affairs
25. Secretary for Disability Affairs
26. Secretary for Political Affairs
27. Executive Director (Ex officio)

Article 6.2: Election of National Officials

6.2.1 The Election of National Officials shall be conducted on the guiding principle that at least one third shall be of either gender.

6.2.2 All National Officials other than the Secretary for Parliamentary Affairs and the Executive Director shall be elected by the National Delegates Convention and shall hold office for a term of five years.

a) The Party Leader shall remain in office until the next election of National Officials.

b) In the event that the Party Leader is unable to discharge of his or her duties by reason of physical or mental infirmity, death, resignation or where he or she ceases to be a Party member or a Member of Parliament, a Special Session of the National Delegates Convention shall be convened to elect a new Party Leader.

c) In the event that the Deputy Party Leader is unable to discharge his/her duties by reason of physical or mental infirmity, death or resignation, or where he or she ceases to be a Party member or a Member of Parliament, the Party Leader shall appoint a new Deputy Party Leader without any need to convene any National Delegates Convention.

d) The Secretary for Parliamentary affairs shall be the Party Parliamentary Whip elected by the Party's Parliamentary Group immediately after a General Election. He or she shall hold office for a term of five years or for the residue of his/her Parliamentary term as may be current on his/her election, whichever is shorter.

e) Elections shall be through secret ballot or any other method of voting acceptable to the delegates in session and, where an office is contested by more than one candidate, the vote shall be decided by a simple majority. Where only one candidate is nominated to an office at the close of the nominations, that candidate shall be declared duly elected to the office for which he/she was nominated. Nomination of all candidates shall be in the prescribed form.

f) Nomination to the Office of Party Leader shall be by a written application to the National Elections Board in the prescribed form.

g) Any National Official may attend any meeting(s) organized by the Branch as an ex-officio member.

Article 6.3: Duties and Responsibilities of National Officials

6.3.1 All office bearers shall perform their functions within the spirit and provisions of this Constitution and shall ensure that they are guided by the objectives and values of the Party. Subject to any other duty expressly provided for by this Constitution, the main duties of elected National Officials shall be:

1) **The Party Leader shall:**

i) Provide leadership and vision to the Party.

ii) Promote national cohesion and wholesome integration of all Party members in national development.

iii) Articulate Party's aspirations and charter a clear course or strategy for the achievement of such aspiration or implementation of Party's objects.

iv) Champion the Party's campaign to form the next Government.

v) Imbue Party members with charisma and lead the membership to newer heights of loyalty and patriotism to Party ideals, values and objectives.

vi) Lead the Party at political negotiations to form a working coalition with any other Party or Parties with the sole purpose of forming the Government as may be desirable in the circumstance.

vii) Provide wise counsel and judicious directives to National Officials specifically or to Party members in general on any matter in dispute or under controversy within any Party organ or amongst Party members.

viii) Confer honours of recognition, merit, distinction, commendation or accolade to a member of the Party or any other person who, in the considered opinion of the National Executive Committee, has made an outstanding contribution to the Party in the achievement of its objects, policies or programs or in furtherance of the same.

2) The Deputy Party Leader shall:

i) Assist the Party Leader and carry out the duties of the Party Leader in his /her absence.

ii) Be the principal deputy of the Party Leader and shall perform such duties and functions as might be expressly delegated to him/her by the Party Leader.

iii) Assist the Party Leader in developing policy formulation processes and development.

iv) Assist the Party Leader in formulating the Party's Strategic Plan

3) National Chairperson

The duties and responsibilities of the National Chairperson shall include:

i) To provide leadership and oversee overall management and running of the Party affairs.

ii) To articulate and defend Party policies.

iii) To instil onto members a sense of loyalty and patriotism to the objects, policies and programs of the Party.

iv) To ensure discipline and proper order within the Party in accordance with the Party's Constitution.

v) To impart onto Party membership the need to adhere to Party objects, policies programs and laws made under this Constitution.

vi) To forge a strong sense of unity within Party organs and amongst Party rank and file and to ensure a pleasant working relationship between Party officers and members.

vii) To convene and preside over National Executive Committee meetings.

viii) To preside over the National Delegates Convention and any

other meetings requiring his attendance.

ix) To ensure order at all meetings of the Party organs.

4) National Deputy-Chairperson

The National Deputy Chairperson shall, under the direction of the National Chairperson:

i) Chair Meetings in the absence of the Chairman

ii) Assist the National Chairperson in matters relating to coordination and liaison with other political parties;

iii) Collect political intelligence and advice on strategies to popularize the party at the grass-roots;

iv) Assist the National Chairperson in matters relating to general Party administration, Party policies and programs;

v) Oversee and coordinate standing, ad hoc and specialized national committees of the Party;

vi) Assist the National Chairperson in all matters pertaining to logistics and operations;

vii) Oversee administrative operations of Branches, Justice and Freedom Party Women and Youth League;

viii) Perform such other specific assignments as might be delegated to him/her by the National Chairman from time to time.

ix) Assist with matters relating to coordination of local strategic review, organizing strategic groups at the regional level to ensure that the party adopts such strategies which take cognizance of the local sensitivities and concerns;

x) Maintain liaison with branches and established think-tanks to facilitate a feedback mechanism to the centre that culminates into a coherent national strategic party planning and action.

xi) Streamline and encourage strategic discourse and activities at the grass-roots level that facilitates timely response to regional needs of the party;

xii) Perform any other duties as might be delegated to him/her by the National Chairperson from time to time.

5) Secretary General

He or she shall be the Party Spokesperson and be responsible for the management of the National Secretariat and remain the principal custodian of Party records from grass-roots to the national level. His/her responsibilities shall include:

- i) Ensuring that all meetings including the National Executive Committee, National Governing Council and National Delegates Convention take place as provided for in the Constitution at such time as may be decided by the National Executive Committee;
- ii) Keeping or causing to be kept a proper record of minutes of all meetings of the National Executive Committee, the National Governing Council and the National Delegates Convention and ensuring the distribution of such minutes and conveying of decisions made to persons and branches concerned.
- iii) Issuing correspondence on behalf of Party organs in which he or she is a member and sending out notices of all meetings of the organs concerned.
- iv) Preparing annual reports on the work of the National Executive Committee, the National Governing Council and the National Delegates Conferences.
- v) Be the depository and custodian of all Party documents including Party Seal, Minutes Register, instruments of intellectual property rights, instruments of registration, registration of all Party Branches and Party members' register.
- vi) Corresponding and consulting with the Registrar of Political Parties on behalf of the Party as the authorized principal officer of the Party.
- vii) Any other duties conferred upon him or her by this Constitution or the National Executive Committee.

6) Deputy Secretary General

The Deputy Secretary General shall, under the direction of the Secretary General and assist the Secretary General in the implementation of Party's strategies, policies and programs and any other specific assignments as might be delegated to him/her by the Secretary General from time to time.

7) National Treasurer

The National Treasurer shall be in charge of Party finances and shall

supervise all financial transactions at all Party levels under the direction of the National Executive Committee. He or she shall also:

i) Receive and bank all monies on behalf of the National Executive Committee and operate a banking account together with such other signatories as may be specified by the National Executive Committee;

ii) Keep such books of account as may be necessary to record clearly the financial position of the Party;

iii) Prepare Annual Party Budgets or Estimates and overall fiscal planning;

iv) Monitor financial allocations and expenditure according to departmental votes as may be approved by the National Executive Committee;

v) Ensure the execution of prudent stewardship standards and best financial practices to protect Party's finances;

vi) Prepare and submit to the National Executive Committee a Financial Statement every quarter of the year and ensure that copies of duly audited Annual Accounts are circulated to all delegates at the same time the notice convening the National Delegates Convention is sent out;

vii) Be responsible, in conjunction with Party's Finance and Resource Mobilization Committee, for the formulation and execution of resource mobilization plans and strategies.

8) Deputy National Treasurer -

The Deputy National Treasurer shall assist the National Treasurer in;

i) Ensure the execution of prudent stewardship standards and best financial practices to protect Party's finances;

ii) Perform such other specific assignments as might be delegated to him/her by the National Treasurer from time to time.

9) National Organizing Secretary

The National Organizing Secretary shall supervise organizations of the party and in particular:

i) Organize public meetings, functions, and meet the people tours;

- ii) Be responsible for promoting and mobilizing for party activities including the recruitment of Party members at branch level;
- iii) Coordinate effective functioning of all branches and ensuring they hold meetings in accordance with the requirements of this Constitution;
- iv) Maintaining and developing new relationships with party supporters in the Diaspora
- v) In consultation with the Secretary General and the NEC, supervise the organization of the National Delegates Convention, National Governing Council and thereafter report on the progress in the holding of such meetings.

10) Deputy National Organizing Secretary

The Deputy National Organizing Secretary shall work under the direction of the National Organizing Secretary, and perform such assignments as he/she shall be assigned from time to time by the National Organizing Secretary.

11) Secretary for Public Policy and Economic Affairs

The Secretary for Public Policy and Economic Affairs shall;

- i) Be responsible for the development of policy on any matter as the Party may in its wisdom choose to focus attention on and to upraise the party on merits and demerits of the same;
- ii) Be required to defend such policy so adopted whenever called upon by the party leadership in the public domain;
- iii) Perform such other related duties as may be directed by the National Executive Committee.

12) Secretary for Legal and Constitutional Affairs

The Secretary for Legal Affairs shall;

- i) Be the legal adviser to the Party in all legal and constitutional matters;
- ii) Perform such other duties as may be directed by the National Executive Committee.

13) Secretary for Publicity and Information

The Secretary for Publicity and Information shall:

- i) Be responsible for dissemination of information and public relations;

- ii) Perform such other related duties as may be directed by the National Executive Committee.

14) Secretary for International Affairs

The Secretary for International Affairs shall:

- i) Be responsible for matters of foreign policy, contact with foreign organizations and creation of mutually beneficial links with foreign organizations and states;
- ii) Perform such other related duties as may be directed by the National Executive Committee.

15) Secretary for Women Affairs (Justice and Freedom Party Women Leader)

The Secretary for Women Affairs (Justice and Freedom Party Women Leader) shall:

- i) Be the National Chairperson of the Justice and Freedom Party Women;
- ii) Coordinate the activities of the Justice and Freedom Party Women;
- iii) Generally promote and mobilize Party activities and policies among the women of Kenya under the direction of the National Executive Committee.

16) Secretary for Youth Affairs (Justice and Freedom Party Youth Leader)

The Secretary for Youth Affairs shall:

- i) Be a youth aged not more than 35 years at the time of elections;
- ii) Be the National Chairperson of the Justice and Freedom Party Youth League;
- iii) Generally promote and mobilize Party activities and policies among the youth of Kenya under the direction of the National Executive Committee.

17) Secretary for Special Interest Groups

The Secretary for Special Interest Groups shall be responsible for:

- i) Promoting the interest of special interest groups within the Party mainstream, in terms of representation and participation in Party structures and activities;
- ii) The identification and mobilization of special interest groups and ensuring that special interest groups have a national presence and

profile within the Party;

iii) Perform such other related duties as may be directed by the
National Executive Committee.

18) Secretary for Environment

The Secretary for Environment shall:

i) Be responsible for ensuring that sound environmental conservation and management policies are articulated in the Party manifesto and propagated in Party programs; promoting sustainable management of natural resources at the national level;

ii) Perform such related other duties as may be directed by the National Executive Committee.

19) Secretary for Parliamentary Affairs (Whip)

The Party Whip shall be responsible for:

i) Galvanizing support of all Members of Parliament of the Justice and Freedom Party and other Members of Parliament of different persuasions for motions and bills proposed or supported by the Party;

ii) Be responsible for calling and recording the proceedings of the meetings of the Parliamentary Group and briefing other organs of the Party on the activities of the Parliamentary Group.

20) Secretary for Devolved Government

The Secretary for Devolved Government shall be responsible for:

i) Promoting policies for equitable distribution of resources among the regions and monitoring devolved government to ensure it is accountable.

ii) Perform any other related duties as may be directed by the National Executive Committee.

21) Secretary for Science and Technology

The Secretary for Science and Technology shall be responsible for;

i) The promotion of the use of Information and Communication Technology (ICT) within the Party;

ii) Building the capacity for Party members to utilize ICT;

iii) Promoting education policies that meet current technological needs, and promoting innovation in technological development so as to create self-sufficiency for the party and the country;

iv) Performing any other related duties as may be directed by the National Executive Committee.

22) Secretary for Labour and Human Resource Development

The Secretary for Labour and Human Resource Development shall be responsible for:

- i) Developing policies that promote reform;
- ii) The enactment of labour laws that enhance equity in labour relations and match skills to industry needs;
- iii) Liaising with trade and employers' unions.

23) Secretary for Security

The Secretary for Security shall be responsible for development of Party policy on matters of internal security and public order.

24) Secretary for Humanitarian and Disaster Management Affairs

The Secretary for Humanitarian and Disaster Management Affairs shall be responsible for the development of the party's strategic plan for humanitarian and the disaster mitigation, management, evaluation and coordination of response to disaster response.

25) Secretary for Persons with Disability

The Secretary for Persons with Disability shall be responsible for:

- i) The promotion and advocacy of the rights of persons with disability in the Party;
- ii) To advice the Party on all matters that appertain to disability and public policy.

26) Secretary for Special programs, Security and Social Welfare

The Secretary for Special Programs, Security and Social Welfare will be responsible for:

- i) The management of all special programs of the party;
- ii) Internal and public order;
- iii) The development of the party's strategic plan for such activities and their mitigation, management, evaluation and coordination of responses.

27) Secretary for Political Affairs

The Secretary for Political Affairs will deal with all matters political, including but not limited to:

- i) Coordination and liaison with other political parties;
- ii) Collection of political intelligence and advice on strategies to

popularize the party at the grass-roots;

iii) Perform any other duties as may be assigned by the National Executive Committee.

6.4 The National Executive Committee shall, in its own discretion and subject to the availability of funds, grant such honoraria, out of pocket expenses, to any National Official so as to reasonably facilitate his or her attendance at meetings or to ameliorate his or her just and fair expenses.

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CHAPTER 7 – PARTY ORGANS

7.1 There is hereby established the following Party organs:

- a) National Delegates Convention (NDC)
- b) National Governing Council (NGC)
- c) National Executive Committee (NEC)
- d) Branch Executive Committee (BEC) (County)
- e) Sub-Branch Executive Committee (SBEC) (Constituency)
- f) Location/Ward Steering Committee
- g) Sub-Location Management Committee (SMC)
- h) Party Parliamentary Group (PPG)
- i) Party county assembly Group (PCAG)
- j) Justice and Freedom Party Women League
- k) Justice and Freedom Party Youth League
- l) National Secretariat (NS)
- m) National Elections Board (NEB)

Article 7.2: National Delegates Convention

7.2.1 The National Delegates Convention shall be the supreme organ of the Party with power to determine Party policy.

7.2.2 The National Delegates Convention shall be composed of the following members:

1. All members of the National Executive Committee
2. All members of the Party Parliamentary group
3. All Members of the Council of Governors.
4. All members of the Branch Executive Committee
5. All members of the Justice and Freedom Party Youth League
National Executive

6. All members of the Justice and Freedom Party Women League National Executive

7. Eight members of the Sub Branch Executive Committee comprising of; Chairperson, Secretary, Organizing Secretary, Treasurer, Secretary for Women Affairs (Justice and Freedom Party Women Leader), Secretary for Youth Affairs (Justice and Freedom Party Youth Leader), persons with disability representative and special interest /marginalized representative.

8. All members of the Party's Standing Committees specially nominated by the National Executive Committee to attend the Convention as delegates.

9. At least one member from each registered Overseas Branch specially nominated by the NEC to attend the Convention as delegates.

7.2.3 The National Executive Committee may, in its wisdom, invite individuals who have made special contribution to the Party or who have special skills or experience to attend the Convention with no right to vote; provided always that this category shall include, but not limited, to representatives of special interest groups, comprising at least two representatives of persons with disability.

7.2.4 The National Delegates Convention shall have the following specific powers, duties and obligations:

a) To review party policies and programs and give directions regarding the organization of the Party.

b) To consider, modify, amend and, if it thinks fit, ratify the Manifesto, Constitution, Rules and Regulations of the Party and those governing its subsidiary organizations and their operations.

c) To establish and/or revise the by-laws, if required for the proper regulation of the affairs of the Party.

d) To receive, examine and approve Annual Financial Statement and Audited Accounts presented by the National Treasurer for the period since the previous ordinary session of the National Delegates Convention and review annual dues payable by the Party members.

e) To receive and discuss reports of the National Governing Council and the National Executive Committee.

f) To appoint Party Auditor and fix his/her honorarium.

g) To elect, from among eligible Party members, the National Officials of the Party who shall constitute the National Executive Committee for a term of five years as set out in this constitution.

h) To delegate or confer any of its powers or duties to the National Governing Council and the National Executive Committee in addition to its functions.

i) To elect or appoint any other Standing Committee and assign specific tasks and duties to such committee.

j) To nominate the Party's Presidential candidate for the election of the President of the Republic of Kenya.

k) To initiate all such activities to further the aims and objects of the Party.

l) To perform any other duties and functions as the National Delegates Convention may deem fit.

Article 7.3: Procedure of Meeting at National Delegates Convention

7.3.1 Ordinary Session:

An Ordinary Session of the National Delegates Convention shall be convened by a resolution of the National Executive Committee ratified by the National Governing Council, and held once every five years but not later than 31st December of the fifth year, at a place, time and date to be determined by the National Executive Committee.

The notice and agenda convening the meeting shall be sent out by the Secretary General, failing which, any other Party official specially appointed for that purpose by the National Executive Committee at least twenty one days before such date and published in a daily English newspaper with the greatest circulation, and carried in a leading Swahili radio broadcast.

7.3.2 Only agenda items as approved by the National Governing Council shall be discussed at the Ordinary Session of the National Delegates Convention.

7.3.3 Special Session:

A Special Session of the National Delegates Convention shall be summoned by the National Chairperson upon the decision of the National Executive Committee or upon a requisition in writing signed by at least one third of the delegates eligible to attend an Ordinary Session of the

National Delegates Convention.

The notice and agenda convening the meeting shall be sent out by the Secretary General at least twenty one days before such date and published at least twice on a daily English newspaper with the greatest circulation, in addition to at least two Swahili radio broadcasts carried by _____ a _____ leading broadcasting station.

7.3.4 Where a Special Session of the National Delegates Convention is requisitioned by delegates, a notice calling upon the National Chairperson to summon the Convention including the agenda and date desired for the Convention shall be served upon the Secretary General not later than sixty-five working days before the date proposed; but where the National Chairperson fails to summon the Convention within twenty one working days after due service of the notice, the Convention shall, subject only to Article 17.3.6 here-under, stand duly summoned and properly convened on the date, place and time contained _____ on the notice.

7.3.5 Where a Special Session of the National Delegates Convention requisitioned by delegates is convened in default of the National Chairperson summoning the same, the delegates requisitioning the Convention shall, not less than twenty one working days before the proposed date, cause a notice convening the Convention to be published on a daily English newspaper with the greatest circulation, and carried by a leading Swahili radio broadcast; provided always, that such notice shall contain the agenda, place, date and time of the Convention.

7.3.6 Only agenda items prepared by the National Executive Committee or as may be requisitioned by delegates shall be discussed at the Special Session of the National Delegates Convention.

The National Chairperson or, in his absence, any of his deputies but failing which a delegate, specially elected by delegates in attendance, shall preside at a Special Session of the National Delegates Convention requisitioned by delegates. Similarly, the Secretary General _____ or, _____ in _____ his absence any of his deputies but failing which a delegate, specially elected by delegates in attendance, shall be the Secretary of such Convention.

7.3.7 Quorum of the Ordinary or Special Sessions of the National Delegates Convention shall be 30% of eligible members present and

voting.

7.3.8 Decisions shall be taken through the vote by consensus, secret ballot or by a unanimous resolution.

Article 7.4: The National Governing Council (NGC)

7.4.1 There is hereby established a National Governing Council, which shall be the second highest organ of the Party, and shall consist of the following members:

- a) All members of the National Executive Committee;
- b) All Chairmen of the Branch Executive Committees;
- c) All members of the Party's Parliamentary Group;
- d) All members of the Council of Governors;
- e) All members of the National Elections Board;
- f) All Chairmen of Party's Standing Committees;
- g) All Justice and Freedom Party League National Officials;
- h) All Justice and Freedom Party Youth League National Officials
- i) Representatives of the Justice and Freedom Party County Assemblies National Officials;
- j) Representatives of the Women's League National Officials;
- h) Representatives of the Persons with Disabilities National Officials.

7.4.2 The National Governing Council shall have the following functions:

- a) To review and/or formulate policies of the Party for approval by the National Delegates Convention;
- b) To act as the broader executive body of the National Delegates Convention and to ensure that all recommendations by the National Delegates Convention are duly carried out by the Party and the National Secretariat;
- c) To receive reports from the National Executive Committee on the operations of the Party;
- d) To monitor general activities of the Party on behalf of the National Delegates Convention and to provide direction for such activities;
- e) To establish specialized committees and other advisory bodies as are necessary to carry out aims and objects of the Party;
- f) To run the party and make decisions in between the National

Delegates Congress;

g) To review and develop political agenda for the Party's Civic and Parliamentary Groups;

h) To review and recommend the reports of the National Executive Committee to National Delegates Convention;

i) To approve the agenda for the National Delegates Congress as may be prepared and presented by the National Executive Committee or as may be notified by any Party member. A notice to include any other agenda item to the National Delegates Convention by a member shall be sent to reach the Secretary General not later than twenty one working days before the session of the National Governing Council;

j) To make policy and administrative decisions on behalf of the National Delegates Convention if it is the considered opinion of the National Executive Committee that such decision cannot await the next National Delegates Convention but thereafter present such decisions for ratification at the Ordinary Session of the National Delegates Convention immediately following;

k) To initiate all such activities as might further the aims and objects of the Party.

7.4.3 The National Governing Council shall be convened by a resolution of the National Executive Committee and shall meet at least once every twelve (12) months.

7.4.4 Ordinary Session:

An Ordinary Session of the National Governing Council shall be convened by a resolution of the National Executive Committee ratified by the National Governing Council, and held once every five years but not later than 31st December of the fifth year, at a place, time and date to be determined by the National Executive Committee.

The notice and agenda convening the meeting shall be sent out by the Secretary General, failing which, any other Party official specially appointed for that purpose by the National Executive Committee at least twenty one days before such date and published in a daily English newspaper with the greatest circulation, and carried in a leading Swahili radio broadcast.

7.4.5 (Formerly 7.4.4) The quorum for a meeting of the National

Governing Council shall be one-third of its membership. Any official who fails to attend three consecutive meetings without an acceptable reason and apology shall be liable to suspension.

Article 7.5: The National Executive Committee (NEC)

7.5.1 The National Executive Committee shall be the executive organ of the Party and shall be composed of the following members:

- a) All the National Officials;
- b) The Party's Executive Director, who shall be an ex-officio member.

7.5.2 The National Executive Committee shall be constituted by the National Delegates Convention to hold office for a term of five years save for the Secretary of Parliamentary Affairs who shall be elected by the Parliamentary Group and ratified by the National Delegates Convention.

7.5.3 The National Executive Committee shall have the following functions and powers:

- a) To act as the executive body and carry out the decisions of the National Governing Council and the National Delegates Congress:
- b) To supervise the National Secretariat of the Party and to take such measure as it deems necessary to enforce the decisions and programs of the Party as laid down by the National Governing Council and the National Delegates Convention.
- c) To issue and send directives and instructions to and receive reports from the Branches.
- d) To convene the meetings of and prepare the agenda for and reports to the National Governing Council and National Delegates Convention.
- e) To oversee the operations of the Justice and Freedom Party Women, Justice and Freedom Party Youth, Party Parliamentary Group and the County Assembly Group
- f) Set up committees as it deems necessary from time to time for specified tasks and to determine their terms of reference.
- g) To operate and determine the manner in which the Party accounts and finances shall be prudently managed.
- h) To appoint and fix the Terms and Conditions of Service of the

Executive Director and other members of staff in the employment of the Party.

i) To receive reports, supervise the work of, and delegate such functions to the National Secretariat and National Elections Board as it considers necessary.

j) To recommend to the Party Leader names of any member of the Party or any other person who has made an outstanding contribution to the Party in the achievement or furtherance of its objects, policies or programs for the conferment of honours of recognition, merit, distinction, commendation or accolade in accordance with the Party's Reward and Merits Scheme as it may deem appropriate.

k) To initiate, prepare or cause to be prepared the necessary quarterly, semi-annual or annual financial statements for approval by National Governing Council and the National Delegates Convention.

l) To nominate and present a Party List to the IEBC in accordance with the provisions of the Law.

m) To receive, consider, approve and implement reports and recommendations from the various standing, ad hoc and specialized committees or individuals.

n) To liaise with the Party National Election Board in order to ensure the coordination of elections of Party Officials at all levels and Party nominations for Presidential, Parliamentary and Civic elections.

o) To make Elections and Nomination Rules and lay them before the National Governing Council for approval.

p) To appoint various schemes aimed at stimulating Party activities.

q) To make Elections and Nomination Rules and/or Regulations as may be prescribed under this Constitution and lay them before the National Governing Council for ratification.

r) To initiate all such activities as might further the aims and objects of the Party.

7.5.4 The National Executive Committee shall meet at least once in every three months except for emergency meetings which may be convened by the Secretary General according to exigencies of time in consultation with the National Chairperson or by a written request made by 25% of the members thereof.

7.5.5 Any vacancy occurring in the National Executive Committee during the course of the term before the next National Delegates Convention may be filled through nomination by the National Executive Committee from amongst members of the National Delegates Convention until the vacancy is substantially filled at the next Delegates Convention.

7.5.6 Ordinary Session:

An Ordinary Session of the National Executive Committee shall be held once every three months.

The notice and agenda convening the meeting shall be sent out by the Secretary General with a 2 weeks (14 days) at least, such date communicated personally to the members via telephone or sms.

7.5.7 (Formerly 7.5.6) The quorum for a meeting of the National Executive Committee shall be one-third of its membership. Any official who fails to attend three consecutive meetings without an acceptable reason and apology shall be liable to suspension.

Article 7.6: The National Secretariat (NS)

7.6.1 There is hereby established a National Secretariat which shall be headed by an Executive Director assisted by a Deputy Executive Director. The National Executive Committee shall determine the number and designation of the departments with the National Secretariat.

7.6.2 The Executive Director shall be appointed by the National Executive Committee. He/she shall be responsible for overall coordination of Party activities, budget and resource and programme management.

7.6.3 The main duties of the National Secretariat shall be:

- a) Management of Party operations.
- b) Implementation of Party decisions.
- c) Processing the clearance of persons to be appointed by the National Executive Committee as Party's nominees to the County Assembly or Parliament.
- d) Voter outreach and membership recruitment.
- e) Registration, mobilization and maintenance of voters or members

register.

f) Coordination, facilitation and synchronization of Party activities and events.

g) Public relations, communication and media outreach.

h) Fundraising and resource mobilization.

i) Campaign strategies.

j) Operations and logistics.

k) Party policy and research.

l) Regional coordination.

m) Liaison with all Party structures.

n) Any other duties as may be assigned by National Executive Committee.

7.6.4 Members of Staff appointed to each department by the National Executive Committee shall be guided by the Party Service Code.

7.6.5 The Secretariat shall be responsible for implementing decisions and programs of the Party under guidance of the Secretary General, National Executive Committee and in liaison with other National Officials.

7.6.6 The National Secretariat shall service the operations of subsidiary organizations of the Party.

7.6.7 The National Secretariat shall function directly under the office of the Secretary General.

Article 7.7: Party Parliamentary Group (PPG)

7.7.1 There shall be established the Party Parliamentary Group comprising the following officers:

a) Party Leader.

b) Deputy Parliamentary Leader.

c) Party Parliamentary Whip.

d) Party Parliamentary Secretary.

e) All JFP Members of Parliament (The Senate and National Assembly).

7.7.2 The duties of the Parliamentary Group shall include espousing, advancing and defending Party policies and programs within Parliament and shall, at all times, whether jointly or severally exercise due diligence in the discharge of their parliamentary duties.

7.7.3 The Parliamentary Group shall make its own rules and regulations to govern the conduct of its meetings and freedoms provided that such rules shall be laid before the National Executive Committee for approval.

Article 7.8: Party County Assembly (PCAG)

7.8.1 There shall be a Party County Assembly Group consisting of all the JFP elected and nominated members of the County assembly to advocate the Party's agenda within their respective County Assembly. The leader of the Party County assembly shall head the respective County Assembly Group in which they are members. Each Party County Assembly Group shall make its own rules and regulations to govern the conduct of its meetings and freedoms provided that such rules shall be laid before the National Executive Committee for approval.

Article 7.9: Justice and Freedom Party Women League

7.9.1 There shall be a Women's League known as the Justice and Freedom Party Women League membership of which shall be open to all women who are members of the Party. The Justice and Freedom Party Women League shall be an integral part of the Party and shall be subject to the general direction of the National Executive Committee and the Party's general control and discipline at all levels.

7.9.2 There shall be JFP Women Executive Committees at National, Branch, Sub Branch, Location/Ward and Sub-Location level consisting of Chair, Deputy Chair, Secretary, Deputy Secretary, Treasurer, Deputy Treasurer, Organizing Secretary, Deputy Organizing Secretary and twelve Committee Members.

7.9.3 The officials of the Justice and Freedom Party Executive Committees at National, Branch, Sub-Branch, Location and Sub-Location shall be elected simultaneously and in the same manner as their counterpart Party Officials. The officials shall hold office for a term

of five years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.

7.9.4 Application for membership shall be made verbally or in writing to the Sub-Location Justice and Freedom Party Committee or the nearest Party office.

Article 7.10: Justice and Freedom Party Youth League

7.10.1 There shall be a Youth League known as the Justice and Freedom Party Youth league, membership of which shall be open to all Party members aged between eighteen and thirty-five years. The Justice and Freedom Party Youth shall be an integral part of the Party and shall be subject to the general direction of the National Executive Committee and the party's general control and discipline at all levels.

7.10.2 There shall be Justice and Freedom Party Youth League Executive Committees at National, Branch, Sub-Branch, Location and Sub-Location level consisting of Chair, Deputy-Chair, Secretary, Deputy Secretary, Treasurer, Deputy Treasurer, Organizing Secretary, Deputy Organizing Secretary and twelve committee members.

7.10.3 The officials of the Justice and Freedom Party Youth Executive Committees at National, Branch, Sub-Branch, and Sub-Location shall be elected simultaneously and in the same manner as their counterpart Party Officials. The officials shall hold office for a term of 5 years, and are eligible for re-election upon expiry of their term, subject to a maximum of two consecutive terms.

7.10.4 Application for membership shall be made verbally or in writing to the Sub-Location Justice and Freedom Party Youth Committee or the nearest Party office.

7.10.5 The organization, functions, rules and regulations of Justice and Freedom Party Women League and Justice and Freedom Party Youth shall be determined, established and set out by each group respectively provided that they are in conformity with the Party's overall objectives and are laid for approval by the National Executive Committee.

Article 7.11: National Elections Board

7.11.1 There is hereby established the JUSTICE AND FREEDOM PARTY OF KENYA National Elections Board whose mandate is to plan, organize, direct and coordinate the all party elections.

7.11.2 The National Elections Board will be appointed by the National Executive Committee upon a resolution made by two-thirds of members and will comprise eleven respected and knowledgeable persons of high

integrity who do not hold any elective Party position and at least one-third shall be either of gender.

7.11.3 The National Elections Board shall appoint an Election Supervisory panel in each County, comprising of three persons of high integrity to supervise the Party elections in the counties.

7.11.4 The National Elections Board shall make its own rules of procedure for its meetings.

7.11.5 The National Secretariat shall provide secretarial support services to the Board.

7.11.6 The members of the National Elections Board may serve for a term of five years and are eligible for re-appointment at the expiry of their term, subject to a maximum of two consecutive terms.

Article 7.12: Branch Executive Committees

7.12.1 The Party shall establish Branches in each County in Kenya. A Branch shall be responsible to the National Executive Committee.

7.12.2 Each Branch shall be managed by a Branch Executive Committee consisting of the Branch Chairperson, Deputy Chairperson, Secretary, Deputy Secretary, Organizing Secretary, Deputy Organizing Secretary, Treasurer, Deputy Treasurer, Secretary for Women Affairs, Secretary for Youth Affairs and a special interest representative, persons with disability representative and eight Committee Members, all of whom shall be elected at the Branch Delegates Convention and the Branch Executive Coordinator, appointed by the Branch Executive Committee in consultation with the National Secretariat, who shall be in an ex-officio member.

7.12.3 The duties of the office bearers of the Branch, Sub-Branch/Location/Ward, Sub-Location Executive Committee shall be as follows:

a) The Chairperson

He/she shall convene and preside over all meetings.

b) The Deputy Chairperson

He/she shall perform such duties as shall be assigned to him by the Chairperson. He/she shall assist and assume the office of the chairman in the latter's absence.

c) The Secretary

The Secretary shall keep proper records of all proceeding and minutes of the meetings of the Branch. He/she shall issue notices convening all meetings of the Branch under the direction of the Chairperson and perform all such duties as may from time to time be assigned by the Committee including handling of correspondence.

d) The Deputy Secretary

He/she shall perform such duties as shall be assigned to him by the Secretary. He/she shall assist and assume office of the Secretary in the latter's absence.

e) The Treasurer

The Treasurer shall be in charge of the Branch Finances and accounting. He/she shall prepare and submit to the Committee the Financial Statement of Accounts.

f) Deputy Treasurer

He/she shall perform such duties as shall be assigned to him by the Treasurer. He/she shall assist and assume the office of the Treasurer in the latter's absence.

g) The Organizing Secretary

The Organizing Secretary shall organize and supervise the programme of work of the Party at the Branch level, and shall ensure the proper and effective functioning of the organs of the Party at the Branch level. He/she shall ensure the proper and effective functioning of the other organs of the Party at the Branch level, including Youth and Women Groups.

h) The Deputy Organizing Secretary

He/she shall perform such duties as shall be assigned to him by the Organizing Secretary. He/she shall assist and assume the office of the Organizing Secretary in the latter's absence.

i) The Branch Executive Coordinator

The Branch Executive Coordinator shall be appointed by the National Secretariat in consultation with the Branch Executive Committee. The Branch Executive Coordinator shall be an employee of the National Secretariat and shall be under the direction of the Branch Executive Committee and shall be the custodian of all the Branch property, books of accounts, minute books, membership register and all the records of the party at the Branch. He/she shall be an employee of the National Secretariat.

j) The duties of the Branch Executive Committee shall be to:

- a) Promote party policies and activities among the people in the Constituency in order to realize the Party's objectives, policies and programs.
- b) Recruit members to the Party.
- c) Represent views and interests of the Branch members at the National Governing Council and the National Delegates Convention.
- d) Ensure discipline and adherence to Party policies and
- e) programs among individual Party members and the Justice and Freedom Party Women League and Justice and Freedom Party Youth League.
- f) Investigate any allegations of misconduct of any member and make recommendations to the National Executive Committee.
- g) Promote political and general civic and voter education amongst the people for the benefit of the Party.
- h) The Branch Executive Committee shall meet at least once every three months.

Article 7.13: The Sub-Branch/Location/Ward Steering Committee

7.13.1 There is hereby established a Party Sub Branch in each Constituency in Kenya the Sub Branch shall, in the interest of efficient organization be subdivided into ward case may be and Sub location/ being the basic unit. The Sub-Branch shall be under the general direction of the Branch as the case may be.

7.13.2 The Sub-Branch shall be governed by a Sub Branch Executive Committee which shall consist of: Sub- Branch Chairperson, Deputy Chairperson, Secretary, deputy Secretary, Organizing Secretary, Deputy Organizing Secretary, Treasurer, Sub-Branch Deputy Treasurer, Secretary for Women Affairs, secretary for Youth Affairs, special interest/or marginalized representative, persons with disability representative and eight Committee Members.

- a) Duties of the Sub-Branch Executive Committee shall be similar to those of the Branch.
- b) The Chairman of a Sub-Branch may invite one or more of the Local Opinion Leaders to attend a Sub-Branch Executive Committee meeting if it is in the best interest of the Party. Such invited leaders shall have the right to speak but not to vote thereat.
- c) The Sub-Branch Executive Committee shall meet at least once a month.

Article 7.14: Ward Steering Committee

7.14.1 There shall be established a Ward Steering Committee in the interest of efficient organization of the Sub Branch. The Ward Steering Committee shall be under the general direction of the Sub Branch.

7.14.2 The Ward Steering Committee shall be managed by the following officials: Ward Chairperson, Deputy Chairperson, Secretary, Deputy Secretary, Organizing Secretary, Deputy Organizing Secretary, Treasurer, Ward Deputy Treasurer, Secretary for Women Affairs, Secretary for Youth Affairs, Special interest/or Marginalized representative, Persons with Disability representative and eight Committee Members .

7.14.3 The Duties of the Ward Steering Committee shall be similar to those of the Sub Branch.

a) The Chairman of a Ward may invite one or more of the Local Opinion Leaders to attend a Ward Steering Committee meeting if it is in the best interest of the Party. Such invited leaders shall have the right to speak but not to vote thereat.

b) The Ward Steering Committee shall meet at least once a month.

7.15.1 Each Ward shall be further divided into party units on the basis of Sub-Locations in the interest of effective Party organization in such areas.

7.15.2 The Sub- locations shall be governed by a Sub- location Management Committee which shall consist of:

Sub-location Chairperson, Deputy Chairperson, Secretary, Deputy Secretary, Organizing Secretary, deputy Organizing Secretary, Treasurer, Deputy Treasurer, Secretary for Women Affairs, Secretary for Youth Affairs, special interest/or marginalized representative, persons with disability representative and eight Sub-location/ Committee Members.

7.15.3 Duties of the Sub-Location Management Committee shall be similar to those of the Ward Steering Committee.

a) The Chairman of a Sub-Location Management Committee may invite one or more of the Local Opinion Leaders to attend a Sub-Location/ Management Committee meeting if it is in the best interest of the Party. Such invited leaders shall have the right to speak but not to

vote thereat.

b) The Sub-Location/ Management Committee shall meet at least once a month.

Article 7.16: Branch Offices

7.16.1 The National Secretariat shall establish Branch Offices in each County which shall be managed by a Branch Executive Coordinator under the direction of the Branch Executive Committee. He/she shall maintain accurate and permanent records regarding membership registers, particulars of any contributions made, inventory of Party assets and an inventory showing Party stock and materials in store.

Article 7.17: Procedure at Branch Meetings

7.17.1 Notices for all meetings including the agenda shall be sent out by the Branch Secretary or Sub-Branch Secretary as the case may be.

7.17.2 There shall be two classes of meetings as follows:

a) Ordinary meetings shall be convened by a written notice of twenty one days.

b) Special meetings shall require a notice of fourteen days and shall be requisitioned for a specific purpose only by order in writing to the Branch Secretary. No other matter shall be discussed other than that stated in the requisition.

7.17.3 Quorums for all meetings shall be one-third of the membership thereof. Any official who fails to attend three consecutive meetings without reasonable apology shall be liable to suspension.

7.17.4 At all meetings the Chairpersons or in their absence the Vice-Chairpersons shall preside, else the members shall elect one among themselves to preside.

7.17.5 Resolutions, unless otherwise stated in the constitution shall be decided by a simple majority by secret ballot or any other method of voting acceptable to the delegates. Decision as to what method of voting to employ shall first be put to members to choose unanimously by consensus.

7.17.6 In the event of an equality of votes at any voting, there shall be a second voting, after which the Chairperson shall have a deciding vote.

Article 7.18: Overseas Branches

7.18.1 The National Executive Committee shall approve and register overseas branches provided that there shall not be more than one branch in any given country except the United States of America which shall have three branches. An overseas branch shall consist of at least 50 members, provided that there shall not be more than one branch in any given city. A branch so formed shall apply to the Party Headquarters for registration and upon approval, be furnished with a Certificate to that effect. Other provisions applying to branches in this Constitution shall apply mutatis mutandis.

Article 7. 19: Resignation

7.19.1 Any Party Member holding a Branch Party office and elects to seek election at Parliamentary or County Assembly General Elections shall be required to resign from office by a written notification to the National Executive Committee at least one month before the scheduled date of party nominations provided that this provision shall not apply in the event of an abrupt dissolution of Parliament or the County Assembly or by- elections.

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CHAPTER 8 – COMMITTEES

Article 8.0: Strategic Planning Committee

8.0.1 The National Executive Committee shall appoint a Strategic Planning Committee as a Standing Committee consisting of seven Members, provided one third shall be of either gender.

8.0.2 Members of this Committee shall serve for a term of 5 years and are eligible for reappointment.

8.0.3 The Strategic Planning Committee shall be responsible for proposing Party Policy, conducting research and overall Organization, Planning and Strategy.

8.0.4 The Strategic Planning Committee shall meet at least once three months.

8.0.5 – **Development, Approval and Publicisation of Policy Documents:**

8.0.5.1 – **Development Process:** The party is committed to developing comprehensive policy documents that align with its values and objectives. These policy documents, as provided for in paragraph 16 of the Second Schedule of the Political Parties Act, 2011, encompass a wide range of areas including service, society, sustenance, restoration, sanctity of life, togetherness, innovation, sovereignty, intelligence, freedom, labour, education, water, land, borders, mass media, advocacy, legal law, morality, leadership, cleansing, sincerity and foreign policy.

8.0.5.2 – **Consultative Approach:** The development of policy documents shall be undertaken through a consultative approach, involving input from party members, experts, stakeholders and the public. This ensures that the party's policies are informed by diverse perspectives and grounded in evidence-based analysis.

8.0.5.3 – **Expert Input:** Where necessary, the party may engage experts and specialists in various fields to provide technical input and guidance in the formulation of policy documents. This ensures that the party's policies are informed by the latest research and best practices.

8.0.5.4 – **Approval Process:** Once drafted, policy documents shall be reviewed and approved by the National Executive Committee (NEC) of the party. The NEC shall ensure that the policies are consistent with the party's values, objectives, and the provisions of the Political Parties Act, 2011.

8.0.5.5 – **Publicisation:** Approved policy documents shall be publicised through various channels, including the party's official website, social media platforms, and other communication channels. Additionally, printed

copies may be distributed to party members, stakeholders and the general public to enhance awareness and understanding of the party's policy positions.

8.0.5.6 – Accessibility: The party shall ensure that policy documents are easily accessible to all stakeholders, including party members, policymakers, civil society organisations, and the public. This may include providing translated versions in different languages to enhance accessibility and reach.

8.0.5.7 – Review and Update: Policy documents shall be subject to periodic review and update to reflect changing circumstances, emerging challenges and evolving priorities. The party shall establish mechanisms for soliciting feedback and input from stakeholders to inform the review process.

8.0.5.8 – Conclusion: The party is committed to the transparent, consultative and evidence-based development of policy documents that reflect its values, principles and vision for Kenya's future. Through a rigorous process of consultation, approval and publicisation, the party aims to ensure that its policies are responsive to the needs and aspirations of the Kenyan people.

8.0.6 – Policy Reporting Documents and Regularity

8.0.6.1 – Introduction: The party recognises the importance of transparency and accountability in governance. As such, it is committed to producing policy reporting documents at regular intervals to inform its members, stakeholders and the public about policy positions, actions and achievements.

8.0.6.2 – Policy Reporting Documents: The party will produce policy reporting documents on key areas of interest, including but not limited to its manifesto commitments, progress reports on policy implementation, impact assessments and future policy priorities.

8.0.6.3 – Regularity of Reporting: Policy reporting documents will be produced on a regular basis, with the frequency determined by the nature of the document and the urgency of the issues addressed. This may include quarterly, biannual or annual reporting cycles, depending on the specific document and the requirements of the Political Parties Act, 2011.

8.0.6.4 – Development Process: The development of policy reporting documents shall be undertaken by designated committees or working groups within the party, tasked with collecting data, analysing information, and drafting the reports. Input may also be sought from relevant stakeholders, experts, and members of the public to ensure the accuracy and comprehensiveness of the reports.

8.0.6.5 – Approval Procedure: Once drafted, policy reporting documents shall be reviewed and approved by the National Executive Committee (NEC) of the party. The NEC will ensure that the reports are accurate, credible, and aligned with the party's values, objectives and priorities.

8.0.6.6 – Publicisation and Accessibility: Approved policy reporting documents will be publicised through various channels, including the

party's official website, social media platforms, and traditional media outlets. Printed copies may also be distributed to party members, stakeholders and the public to enhance accessibility and transparency.

8.0.6.7 – Engagement and Feedback: The party will actively engage with stakeholders and solicit feedback on policy reporting documents to enhance transparency and accountability. This may include holding public forums, consultations and feedback mechanisms to ensure that the reports reflect the needs and concerns of the people.

8.0.6.8 – Continuous Improvement: Policy reporting documents will be subject to continuous review and improvement to ensure that they remain relevant, timely and informative. The party will establish mechanisms for monitoring and evaluating the effectiveness of the reporting process and make necessary adjustments as needed.

8.0.6.9 – Conclusion: The party is committed to producing policy reporting documents at regular intervals to enhance transparency, accountability and public trust. Through a systematic process of development, approval and publicisation, the party aims to provide accurate and timely information to its members, stakeholders and the public on its policy positions and actions.

Article 8.1: Finance and Resource Mobilization Committee

8.1.1 The National Executive Committee shall appoint the Finance and Resource Mobilization Committee as a Standing Committee consisting of nine members including the National Treasurer and the Deputy National

Treasurers. The appointed members shall elect the Chairperson and Secretary among themselves. Provided that one third shall be of either gender

8.1.2 The Finance and Resource Mobilization Committee shall be responsible for:

- a) Developing strategies for and realizing financial resource mobilization and any other support to the Party.
- b) Ensuring that the books of the Party are audited by the appointed auditor.
- c) Developing principles of stewardship, financial discipline, ethics and best practices to guide the Party in matters of fiscal planning and management.

8.1.3 The members shall be in office for five years and shall be eligible for re-appointment at the expiry of their term, subject to a maximum of two consecutive terms.

8.1.4 The Committee shall work closely with the National Executive Committee and will report at least twice a year on the finances and budget of the party.

Article 8.2: Legal Committee

8.2.1 There is hereby established a Legal Committee as a Standing Committee of the Party consisting of the Secretary for Legal Affairs and nine other legal experts who are Party members. The Committee shall be appointed by the National Executive Committee and shall advise the Party on all legal matters. The appointed members shall elect the Chairperson who shall be an Advocate of the High Court of Kenya of not less than ten years standing and a Secretary among them provided one third of their membership shall be of either gender.

8.2.2 The members shall be in office for five years and are eligible for re-appointment at the expiry of their term.

Article 8.3: Disciplinary Committee

8.3.1 There is hereby established a Disciplinary Committee comprising five Party members of good standing, honour and integrity and appointed by the National Executive Committee. The Chairperson, who shall be an Advocate of the High Court of Kenya of not less than ten years standing, shall be appointed by the National Executive Committee.

8.3.2 The Disciplinary Committee shall make its own rules of procedure which shall be approved by the National Executive Committee. The Rules shall comply with written laws of Kenya, the Rule of Law and Rules of Natural Justice.

8.3.3 The members shall be in office for five years and are eligible for re-appointment at the expiry of their term.

Article 8.4: Discipline

8.4.1 The Disciplinary Committee as established under this Constitution shall have the power to receive, hear and determine all cases of discipline concerning Party members. Any Party member may, by a written and signed complaint, refer to the Committee an issue of discipline. A Disciplinary issue shall arise on the ground of gross misconduct and a member shall be liable to the Party's disciplinary measures if he/she engages in any conduct proscribed as shall be provided by the rules in the Schedule of this Constitution.

8.4.2 The Disciplinary Committee shall afford a fair hearing to such member complained against with reasonable opportunity to defend him/herself against the charges or allegations made against him/her in accordance with Rules of Natural Justice.

8.4.3 The Disciplinary Committee shall, after a determination of facts on a complaint, make recommendation to the National Executive Committee which shall have the power to pass a penalty including, but not limited to Reprimand, Censure, Sanction, and Suspension for a period definite, or Expulsion. A Decision to suspend or expel shall be ratified by two thirds of the National Governing Council. Vacancies thus or otherwise created shall be filled in the same manner as they were originally filled.

8.4.4 The Party Branch, Sub-Branch/Ward or Sub-Location shall have no power to suspend or expel a member of the Party. Where an issue of discipline is referred to the Party Branch, Sub-Branch/Ward/Sub Location it shall constitute a Special Branch Disciplinary Committee to deliberate on the issue. Where the Committee is on the view that the misconduct is so serious as to invite suspension or expulsion, the Committee shall refer the matter to the Standing Disciplinary Committee at the Party Headquarters which shall summarily review the facts and make an appropriate recommendation to the National Executive Committee. Provided however the Branch/Sub- Branch/Ward or Sub-Location/ shall have the power to censure or reprimand.

8.4.5 Any member suspended or expelled shall have a right of appeal to a Special Session of the National Governing Council which shall be convened by the National Chairperson not later than six months from the date of the decision appealed from. The National Governing Council shall have the power to review the facts and its decision on appeal shall be final.

8.4.6 Any Party member under a disciplinary process shall be entitled to represent him/herself in person or by an authorized representative or next friend.

8.4.7 Where national legislation or case law exists on the appropriate discipline for given circumstances, the disciplinary committee shall be guided by the same. But in circumstances where that is not the case, the disciplinary committee shall justify its decision within legal parameters.

CHAPTER 9 – STEWARDSHIP

9.1.0 Party Signatories

Document	Designation
Correspondence	Any of these 2 signatories – the Secretary General or the Party Leader;
Bank Signatories	Bank Signatories to be any two of the following: Party Leader, the Chairperson, the Secretary General, the Organizing Secretary and the Treasurer (Treasurer Mandatory);
Coalitions	To be signed by the Party Leader, or the Secretary General;
Mergers	To be signed by the Party Leader, or the Secretary General;

Article 9.0: Stewardship of Funds and Assets

9.0.1 The National Executive Committee shall establish rules governing the collection, management and expenditure of funds. All withdrawals shall be against expenditures in the approved budgets or by resolutions of the National Executive Committee.

9.0.2 The source of funds for the Party shall include the following:

- a) Funding by the Exchequer.
- b) Membership Fees.
- c) Fundraising and Contributions.
- d) Voluntary Contributions.
- e) Donations Contracts, bequests, and grants from any other source not being a foreign government, inter-governmental or non-governmental organization.
- f) Proceeds of any investment, project or undertaking in which the party has an interest.
- g) Net income from Publications and Consultancies.

i) Nomination fees.

i) Contributions from Party Members of Parliament, Governors and County Assembly Representatives.

9.0.3 The Party shall operate Account(s) with local Bank(s) according to modalities laid down by the National Executive Committee.

9.0.4 The signatories to the Bank Account(s) shall be as approved by a resolution of the National Executive Committee.

9.0.5 Funds may not be distributed to members in their capacity as members.

9.0.6 Usage of the funds shall be solely for the purpose of supporting the party efforts, expenditure and overall management, guided by the National Executive Committee.

9.0.7 An Asset Register updated annually shall be maintained.

9.0.8 The National Executive Committee shall establish rules governing the purchase or donation of party property, and management of such assets.

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Article 9.1: Auditor

9.1.1 The Party shall appoint or re-appoint a qualified, registered Auditor to audit the books of the Party at the National Delegates Congress. The Auditor shall not be an office bearer or a member of any committee of the Party.

9.1.2 All Party accounts, records and documents shall be open to inspection by the auditor at any time.

9.1.3 The National Treasurer shall produce and submit audited accounts made up-to-date, which shall not be less than four weeks and not more than two months before the date of the National Delegates Congress.

9.1.4 The Auditor shall be paid such honorarium for his duties as shall be approved by the National Delegates Congress.

Article 9.2: Inspection of Accounts and Membership Registers

9.2.1 The books of account and all documents relating thereto and the

list of members of the Party shall be available for inspection at the registered office of the Party by any person by giving not less than fourteen days' notice in writing.

Article 9.3: Liability

9.3.1 No office bearer shall be held personally liable for any reasonable act or omission in good faith in the performance of his or her duties as an official.

Article 9.4: Contractual liability

9.4.1 No instrument shall bind the Party or create legal relationship with the party unless the person executing it has written authorization from the National Executive Committee (NEC) and such authorization shall indicate the extent of that authority.

Article 9.5: Party Seal

9.5.1 The Party shall have a seal which shall be kept in the custody of the Secretary-General. Other than documents which by law must be sealed, the National Executive Committee may, by a resolution in writing, determine what class of contracts or documents which must be sealed.

9.5.2 The Party Seal shall be authenticated by appending to the document under seal the signature of the National Chairperson and the Secretary General or, in his absence, any other member of the National Executive Committee specifically mandated to do so by the National Executive Committee by a resolution in writing.

Article 9.6: The Press and Publication

9.6.1 The Party may own and/or operate a Printing Press, Radio and/or Television Station as well as an interest or shares in any existing entities.

9.6.2 The Party may publish its own Literature, Newspaper, Periodical Magazine, Pamphlets, and Books among others.

CHAPTER 10 – COALITIONS, DISPUTE SETTLEMENT AND AMENDMENT

Article 10.0: Affiliations, Alliances, Coalitions and Mergers

10.0.1 The Party may form alliances, coalitions and mergers with other like-minded political parties. The decision to form such alliances and coalitions shall be determined by the National Executive Committee.

10.0.2 Instruments of such coalition, affiliations and alliances shall be executed and deposited with the Registrar of Political Parties. The Secretary General shall keep custody of all such Instruments.

10.0.3 Where the Party shares similar vision, mission, objectives and values with another political party, the Party may indeed consider merging with that other political party under provisions provided for in national legislation.

10.0.3.1 The Party may merge with another political party by – (a) forming a new political party; or (b) merging into an already registered political party.

10.0.3.2 The Party's National Delegates Convention, at a Special National Delegates Convention, following consideration and recommendation by the National Governing Council, shall – (a) consider and determine the constitution, rules, regulations and principles which shall form the basis of the merger in accordance with this Constitution; and (b) sign the merger agreement through its authorised officials.

10.0.3.3 The merger agreement signed under Article 10.0.3 shall be deposited with the Registrar of Political Parties within twenty-one days of the signing of the agreement.

Article 10.1: Dispute Resolution

10.1.1 – **Introduction:** The Party is committed to upholding the principles of fairness transparency, and procedural fairness in resolving internal disputes. This internal party disputes resolution mechanism is designed to ensure compliance with Articles 47 and 50 of the Constitution of Kenya, 2010, as well as the provisions of the Political Parties Act, 2011. The mechanism aims to provide a fair and impartial process for resolving disputes within the party, including but not limited to disputes related to membership, nominations, disciplinary actions and internal elections.

10.1.2 – Establishment of Disputes Resolution Committee:

10.1.2.1 – The Party shall establish a Disputes Resolution Committee (DRC) composed of impartial and experienced members appointed by the

National Executive Committee (NEC).

10.1.2.2 – The DRC shall have the status of an independent and impartial tribunal as provided for in Article 50(1) of the Constitution of Kenya, 2010.

10.1.2.3 – The DRC shall be responsible for receiving, investigating, and adjudicating disputes brought before it in accordance with the party's constitution or rules and the provisions of the Political Parties Act, 2011.

10.1.3 – Submission of Disputes:

10.1.3.1 – Any party member or aggrieved individual shall submit their dispute in writing to the Secretary General of the party, clearly outlining the nature of the dispute, the parties involved, and any relevant evidence or documentation.

10.1.3.2 – The Secretary General shall promptly forward the dispute to the DRC for consideration and resolution.

10.1.4 – Fair Opportunity to be Heard:

10.1.4.1 – Before making any determination on a dispute, the DRC shall afford all parties involved a fair opportunity to be heard. This includes providing written notice of the allegations or grievances raised, allowing parties to respond to the allegations, and conducting hearings or meetings where parties can present their arguments and evidence.

10.1.4.2 – The DRC shall ensure that all proceedings shall be conducted in accordance with the principles of natural justice, including the right to a fair and public hearing, as guaranteed by Article 50 of the Constitution of Kenya, 2010.

10.1.5 – Written Reasons for Decisions:

10.1.5.1 – Following the conclusion of a dispute resolution process, the DRC shall provide written reasons for its decisions, including any findings of fact and conclusions of law.

10.1.5.2 – Parties involved in the dispute shall be provided with copies of the DRC's decision and reasons, allowing them to understand the basis for the outcome and assess their rights to further appeal or review.

10.1.6 – Timely Resolution of Disputes: The DRC shall endeavour to resolve disputes in a timely manner, consistent with the requirements of the Political Parties Act, 2011, and Article 47 of the Constitution of Kenya, 2010. Disputes arising from party nominations shall be resolved within thirty days after the date of the party nominations, as mandated by section 38I of the Political Parties Act, 2011. All other disputes shall be resolved within three months of being lodged with the Secretary General.

10.1.7 – Confidentiality and Privacy:

10.1.7.1 – The DRC shall maintain strict confidentiality and privacy in handling disputes, ensuring that sensitive information and personal data are protected from unauthorised disclosure or use, in harmony with Article 50(8) of the Constitution of Kenya, 2010, but subject to every person's right to fair and public hearing, as provided for in Article 50(1) of the Constitution of Kenya, 2010.

10.1.7.2 – Parties involved in dispute resolution proceedings shall be treated with respect and dignity, and their privacy rights shall be upheld throughout the process.

10.1.8 – Appeals Process: Parties dissatisfied with the outcome of a dispute resolution process have the right to appeal to the Political Parties Disputes Tribunal as established in the Political Parties Act, 2011.

10.1.9 – Conclusion: The party's internal disputes resolution mechanism provides a fair, transparent and impartial process for resolving disputes within the party. By adhering to the principles of procedural fairness, natural justice and compliance with constitutional and legal requirements, it is ensured that all party members have access to a fair hearing and effective redress for their grievances.

Article 10.2: Amendment of the Constitution

10.2.1 National Executive Committee may propose or receive proposals from any member of the Party for amendments or review of the entire constitution, which proposals shall be presented for approval by at least two-thirds of members present at the National Delegates Convention.

10.2.2 The quorum for any meeting at which the amendment of the Constitution is proposed shall two-thirds of the delegates eligible to attend and vote.

10.2.3 A resolution to amend the Constitution shall be supported by at least two-thirds of the delegates eligible to attend and vote.

Article 10.3: Mergers

10.3.1 Where the Party shares similar vision, mission, objectives and values with another political party, the Party may indeed consider merging with that other political party under provisions provided for in national legislation.

10.3.2 The Party may merge with another political party by –
(a) forming a new political party; or

(b) merging into an already registered political party.

10.3.3 The Party's National Delegates Convention, at a Special National Delegates Convention, following consideration and recommendation by the National Governing Council, shall –

- (a) Consider and determine the constitution, rules, regulations and principles which shall form the basis of the merger in accordance with this Constitution; and
- (b) Sign the merger agreement through its authorised officials.

10.3.4 The merger agreement signed under Article 10.3.3 shall be deposited with the Registrar of Political Parties within twenty-one days of the signing of the agreement.

10.4 Amendment of the party name, symbol, rules or colours

10.4.1 National Executive Committee may propose or receive proposals from any member of the Party for amendments or review of the party name, symbol, rules or colours, which proposals shall be presented for approval by at least two-thirds of members present at the National Delegates Convention.

10.4.2 The quorum for any meeting at which the amendment of the party name, symbol, rules or colours is proposed shall be two-thirds of the delegates eligible to attend and vote.

10.4.3 A resolution to amend the party name, symbol, rules or colours shall be supported by at least two-thirds of the delegates eligible to attend and vote.

Article 10.5 – Coalitions

10.5.1 – Purpose: The Party recognises the importance of strategic alliances and coalitions in advancing common goals and objectives in the political arena. These rules and procedures in this Article outline the process for entering into a coalition with one or more other political parties, ensuring transparency, accountability and adherence to the provisions of the Political Parties Act, 2011.

10.5.2 – Eligibility Criteria

10.5.2.1 – Any coalition formation must be consistent with the values, principles and objectives of the Party.

10.5.2.2 – Potential coalition partners must demonstrate a commitment to upholding democratic principles, promoting justice, freedom and good governance.

10.5.3 – Coalition Negotiation Process

10.5.3.1 – The negotiation process for forming a coalition shall be initiated by the National Executive Committee (NEC) of the Party.

10.5.3.2 – The NEC shall appoint a negotiation team responsible for engaging with potential coalition partners and facilitating discussions on the terms of the coalition agreement.

10.5.4 – Drafting of Coalition Agreement

10.5.4.1 – The negotiation team shall draft a coalition agreement outlining the terms and conditions of the coalition, including the objectives, structure, decision-making processes, and allocation of resources.

10.5.4.2 – The coalition agreement shall adhere to the rules and procedures outlined in the Constitution of the Party, as well as the provisions of the Political Parties Act, 2011.

10.5.5 – Approval Process

10.5.5.1 – The draft coalition agreement shall be presented to the National Executive Committee (NEC) for review and approval.

10.5.5.2 – Upon approval by the NEC, the coalition agreement shall be submitted to the Registrar of Political Parties in accordance with the timelines specified in the Political Parties Act, 2011.

10.5.6 – Implementation and Monitoring

10.5.6.1 – Once the coalition agreement is deposited with the Registrar of Political Parties, the Party shall appoint representatives to oversee the implementation of the coalition agreement and ensure compliance with its provisions.

10.5.6.2 – Regular monitoring and evaluation mechanisms shall be established to assess the effectiveness of the coalition arrangement and address any challenges or issues that may arise during its implementation.

10.5.7 – Review and Amendment

10.5.7.1 – The coalition agreement shall be subject to periodic review and amendment as necessary to reflect changing circumstances, priorities or objectives of the coalition partners.

10.5.7.2 – Any proposed amendments to the coalition agreement shall be approved by the National Executive Committee (NEC) of the Party before being submitted to the Registrar of Political Parties for endorsement.

10.5.8 – Termination of Coalition

10.5.8.1 – The coalition agreement may be terminated by mutual agreement of the coalition partners or in accordance with the provisions outlined in the agreement.

10.5.8.2 – In the event of termination, the Party shall follow the procedures specified in the coalition agreement and the Political Parties Act, 2011, for withdrawing from the coalition agreement.

10.5.9 – Conclusion: The Party is committed to promoting transparency, accountability and adherence to democratic principles in all of its engagements, including coalition formations. These rules and procedures in this Article provide a framework for entering into coalitions with other political parties while safeguarding the interests of the Party and its members.

CHAPTER 11 – DISSOLUTION

11.0: Dissolution

11.0.1 The Party may be dissolved by a resolution passed by two-thirds majority of registered members of the Party at a Special National Delegates Convention called expressly for the purpose of dissolution.

11.0.2 In such dissolution, all properties and funds of the Party less liability shall be distributed in a manner as shall be determined by the Special National Delegates Convention at which the resolution in favour of the dissolution is passed. Such assets shall be granted to one or more organizations in Kenya whose objectives conform to those of the Party.

11.0.3 The quorum for any meeting at which the dissolution of the Party is proposed shall be two-thirds of the delegates eligible to attend an Ordinary Session of the National Delegates Convention.

11.0.4 A resolution to dissolve the Party shall be supported by at least two-thirds of the delegates eligible to attend and vote

11.0.4 Voting shall be by Secret Ballot only.

CHAPTER 12 – GENERAL

Article 12: Gender and Affirmative Action

12.0.1 In the Endeavour to reach the objective of full representation of women in all decision -making structures the Party shall implement a programme of affirmative action, including the provision of a quota of not less than one-third (1/3) in all organs, appointments, committees, nominations to enable such effective participation.

12.0.2 All Party Officials shall not hold more than one office in the Party.

12.0.3 Any vacancy occurring in the Party organs during the course of the term before the next National Delegates Convention or Party Election as the case may be, shall be filled in acting capacity, through nomination by the National Executive Committee upon recommendations of the relevant Party organ until the vacancy is substantially filled.

Article 12.1: Miscellaneous

12.1.1 The National Executive Committee shall have the power to make rules for the better carrying out of all matters provided in this Constitution. Such Rules shall be consistent with provisions of this Constitution and, where inconsistent, such rules made shall be void to the extent of the inconsistency thereof.

SCHEDULES

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PARTY OF KENYA**
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Schedule I: Party Symbol

The JFP Symbol is a stretched out hand holding a freedom torch



Schedule II: Party Flag

The JFP flag is rectangular; it is one and a half times longer than its width. It is horizontal comprising from top to bottom, the colour purple and gold.

Schedule III: Party Slogan

"Haki na Ukweli"

Schedule IV: Party Salute

The party salute is stretched out fist.

Schedule V: Membership fees

Category	Joining	Annual Subscription
Life	20,000/-	5,000/-
Ordinary	50/-	10/-
Corporate Membership	600,000/-	100,000/-
Group Membership	300,000/-	50,000/-

The above membership fees shall be subject to review from time to time by the National Executive Committee, subject to ratification by the National Delegates Convention.

Schedule VI: Counties

1. Mombasa
2. Kwale
3. Kilifi
4. Tana River
5. Lamu
6. Taita/Taveta
7. Garissa
8. Wajir
9. Mandera
10. Marsabit
11. Isiolo
12. Meru
13. Tharaka-Nithi
14. Embu
15. Kitui
16. Machakos
17. Makueni
18. Nyandarua
19. Nyeri
20. Kirinyaga
21. Murang'a
22. Kiambu
23. Turkana
24. West Pokot
25. Samburu
26. Trans Nzoia
27. Uasin Gishu
28. Elgeyo/Marakwet
29. Nandi
30. Baringo
31. Laikipia
32. Nakuru
33. Narok
34. Kajiado
35. Kericho
36. Bomet
37. Kakamega
38. Vihiga
39. Bungoma
40. Busia
41. Siaya
42. Kisumu
43. Homa Bay
44. Migori
45. Kisii
46. Nyamira
47. Nairobi City

